FUTO SUG SCHOOL OF PARALEGAL STUDIES (SSPS)

I-Barristers Moot Court Preparation Programme

CASE EXAMPLES & SKELETON ARGUMENTS

A Student Hand-Out: Facts, Issues, Reliefs & IRAC Skeletons

Prepared by Barr. Uche Chukwunonso E. | Attorney-General, FUTO SUG

This hand-out gives you two worked case examples. For each case, study the facts, the parties, the issues, and the reliefs sought — then study how each side's skeleton argument is built using the IRAC method (Issue → Rule → Application → Conclusion). Use these as models when you build the skeleton argument for your own assigned case.

Case 1 (Civil): Amaka v. FUTO Directorate of Student Affairs

Parties: Amaka (Claimant) v. FUTO Directorate of Student Affairs (Defendant)

Facts: Amaka paid her hostel fees on time and was issued an allocation slip for a bed-space. On resumption, she discovered her name had been removed from the final hostel list, with no bed-space given and no refund offered, and no explanation provided despite repeated enquiries to the Directorate.

Issues: (i) Did a binding contract arise from Amaka's payment and the issuance of an allocation slip? (ii) Was the Directorate obligated to give Amaka notice or an explanation before cancelling or reallocating her space? (iii) What remedy, if any, is Amaka entitled to?

Reliefs Sought: A refund of the hostel fees paid; alternatively, an order compelling allocation of a bed-space; and damages for the inconvenience caused.

Skeleton Argument (IRAC) — For the Claimant (Amaka)

Issue: Did a binding contract arise, and was Amaka entitled to notice or an explanation before her allocation was withdrawn?

Rule: Payment plus issuance of an allocation slip is capable of forming a binding contract (offer, acceptance, consideration); under Eperokun v. University of Lagos (1986) 4 NWLR (Pt. 34) 162, an institutional decision affecting a student's standing should not be taken without at least informing the affected student.

Application: Amaka paid on time, received a slip confirming her allocation, and was later removed from the list with no explanation and no refund, despite repeated enquiries — there is no evidence any process was followed before her space was withdrawn.

Conclusion: The Directorate is in breach of contract, and the manner of the withdrawal (no notice, no explanation) compounds the unfairness; Amaka is entitled to a refund or reallocation, plus damages for the inconvenience caused.

Skeleton Argument (IRAC) — For the Defendant (FUTO Directorate of Student Affairs)

Issue: Did an allocation slip actually amount to a binding, unconditional contract, or was it merely provisional pending confirmation (e.g., of space availability)?

Rule: Not every administrative document creates a binding contract; where an allocation is expressly or impliedly "subject to confirmation" or "subject to availability," no unconditional promise has been broken if the space is later reassigned for a legitimate administrative reason.

Application: Counsel should press Amaka's team to produce the actual wording of the allocation slip — if it contains any qualifying language, the Directorate's position is much stronger; the Directorate can also argue that hostel space is limited and subject to institutional policy, not an individual guarantee.

Conclusion: If no qualifying language exists on the slip, the Defendant's strongest fallback is not to deny the refund entirely, but to argue that a full refund (rather than reallocation, which may no longer be possible) is the appropriate and sufficient remedy — when your facts are difficult, shift the argument toward the appropriate remedy rather than an outright denial of any wrongdoing.

Case 2 (Criminal): SUG v. Chukwu (The Course Rep Fraud Case)

Parties: Federal Republic of Nigeria/SUG (Prosecution) v. Chukwu (Defendant/Accused)

Facts: Chukwu, a course representative, collected ₦1,000 each from 120 classmates for a class textbook project (₦120,000 in total). He did not purchase the textbooks and did not refund the money after two months of demands, and it was later discovered that he had spent part of the money on personal items.

Issues: (i) Do these facts disclose the criminal offence of stealing, or alternatively obtaining by false pretences, under the Criminal Code? (ii) What exactly must the prosecution prove to sustain a conviction? (iii) Is there a valid defence available to Chukwu?

Relief/Outcome Sought: The prosecution seeks conviction and appropriate sentencing; the defence seeks an acquittal, or at minimum, a finding that this is only a civil debt, not a crime.

Skeleton Argument (IRAC) — For the Prosecution

Issue: Has the prosecution proved, beyond reasonable doubt, that Chukwu fraudulently converted his classmates' money with intent to permanently deprive them of it?

Rule: Under Onuoha v. State (1998) 5 NWLR (Pt. 548) 118, the prosecution must prove that the money was capable of being stolen, belonged to another (the 120 students), was fraudulently converted by the accused, with intent to permanently deprive them.

Application: Chukwu collected money for a clearly stated purpose, failed to deliver on that purpose for two months, spent part of it on personal items unrelated to the agreed purpose, and refused to refund even after direct demand — this pattern of conduct is strong circumstantial evidence of fraudulent conversion and an intention to permanently deprive.

Conclusion: On these facts, the ingredients of stealing are made out, and a conviction (or, if the false-pretences route is preferred, a conviction under s. 419 of the Criminal Code) should follow.

Skeleton Argument (IRAC) — For the Defence

Issue: Has the prosecution proved fraudulent intent beyond reasonable doubt, or is this simply a civil debt dressed up as a crime?

Rule: Under Woolmington v. DPP (1935) AC 462 and s. 36(5) of the 1999 Constitution, the burden remains on the prosecution throughout, and mere suspicion, delay, or poor accounting is not enough — dishonest intent must be affirmatively proved, not assumed from the fact that money has not yet been repaid.

Application: Chukwu may have genuinely intended to purchase the textbooks but faced a supplier issue or personal financial difficulty that delayed the purchase; the use of part of the money on personal items, without more, is also consistent with an intention to "borrow and repay later" (a civil wrong) rather than an intention from the outset to permanently deprive the students of their money.

Conclusion: The prosecution has not excluded the reasonable possibility that this is, at most, a civil debt or breach of trust rather than a crime; the defence should therefore urge a verdict of not guilty, while acknowledging that Chukwu may remain civilly liable to refund the money in a separate civil claim.

Tips: How to Introduce Yourself and Speak Before the Court

1. Opening Your Appearance

Every time you rise to speak for the first time in a proceeding, introduce yourself and say who you appear for. Keep it short and confident:

- "My Lord, I appear for the Claimant, [name]."
- "May it please this Honourable Court, I appear for the Defendant, [name/organisation]."

2. Starting Your Main Submission

Begin every substantive submission — your opening, your closing, or a response to a Bench question — with a respectful opening phrase before diving into content:

- "May it please this Honourable Court..."
- "With respect, My Lord, I submit that..."

3. Mode of Address

Always address the judge respectfully, never casually. Use "My Lord"/"My Lady" or "Your Lordship"/"Your Ladyship" (or "Your Worship," if that is the simplified form your moot uses). Never say "you" or the judge's name directly.

Situation	Say This	Not This
Addressing the judge	"My Lord" / "My Lady" / "Your	"Sir", "You", or the judge's name

	Lordship"	
Referring to opposing counsel	"My learned friend"	Their first name, spoken to the court
Starting your submission	"May it please this Honourable Court..."	Diving straight into the facts
Disagreeing with a point made	"With respect, My Lord, I submit that..."	"That's not correct"
When corrected by the judge	"I am grateful, My Lord" — then adjust	Arguing back or going silent

4. Structure What You Say

Do not ramble. Use your IRAC skeleton as your speaking outline: state the issue, state the rule/authority, apply it to the facts, and land on your conclusion — in that order, every time.

5. Standing, Pace, and Eye Contact

- Always stand when addressing the court, and remain standing until told to sit or until you finish.
- Speak slower than feels natural — nerves make people rush, and a rushed submission is hard to follow.
- Look toward the Bench when making your key points, not down at your notes the whole time.

6. Handling Questions from the Bench

The judge will interrupt you with questions — this is normal and even a good sign, since it means they are engaged. Never treat a question as an attack:

- Pause, listen fully to the question before answering.
- Answer the actual question first, directly, before adding more explanation.
- If you do not immediately know the answer, say: "My Lord, I am not in a position to address that point immediately, but my submission remains..." — this is far better than guessing or going silent.

7. Referring to the Other Side

Never refer to opposing counsel by their first name in front of the court. Always say "my learned friend" — for example: "With respect to my learned friend's submission, I disagree because..."

8. Closing Your Submission

End clearly, so the Bench knows you are done — do not simply trail off. For example: "That, My Lord, is the case for the Claimant/Prosecution/Defence, and I humbly urge this Honourable Court to grant the reliefs sought."

9. General Composure

- Even when you disagree strongly, keep your tone respectful — advocacy is firm, not aggressive.
- If corrected by the judge, respond with "I am grateful, My Lord," and adjust — do not argue back.
- Dress and carry yourself the way you want the Bench to take you seriously — confidence is also shown through composure, not just words.